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Title 33 —Navigation and Navigable Waters

Chapter I —Coast Guard, Department of Homeland Security

Subchapter A —General

Part 17 United States Coast Guard General Gift Fund

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PART 17—UNITED STATES COAST GUARD GENERAL GIFT FUND

Authority: 10 U.S.C. 2601; 14 U.S.C. 501, 503; Treasury Dept. Order 167-1, 18 FR 671.

Subpart 17.01—General Provisions

§ 17.01-1 Basis and purpose.

In accordance with 10 U.S.C. 2601 (formerly the Act of March 11, 1948, secs. 1, to 4, 62 Stat. 71, 72); and Treasury Department Order No. 167-1, dated January 16, 1953 (18 FR 671), the regulations in this part are hereby prescribed to provide for the acceptance and subsequent use of gifts, devises, or bequests of property, real or personal, made on the condition that they be used for the benefit of, or in connection with, the establishment, operation, maintenance, or administration of any school, hospital, library, museum, chapel, or other institution or organization under the jurisdiction of the United States Coast Guard.

[CGFR 61-36, 26 FR 9321, Oct. 3, 1961]

§ 17.01-10 Authority to receive gifts.

- (a) The Commandant, United States Coast Guard, may accept, receive, hold, or administer gifts, devises, or bequests of property, real or personal, made on the condition that they be used for the benefit of, or in connection with, the establishment, operation, maintenance, or administration of any school, hospital, library, museum, chapel, or other institution or organization under the jurisdiction of the United States Coast Guard. The Commandant is authorized to pay all necessary fees, charges, and expenses in connection with the conveyance or transfer of any such gifts, devises, or bequests.
- (b) The Commandant may authorize or designate officers of the United States Coast Guard to accept gifts, devises, or bequests.

[CGFR 53-18, 18 FR 3171, June 3, 1953, as amended by CGFR 61-36, 26 FR 9321, Oct. 3, 1961]

Subpart 17.05—Administration

§ 17.05-1 Gifts.

The gifts or bequests may be in money or negotiable instrument form. If in the form of a money order, check, etc., it should be made payable to the Treasurer of the United States.

[CGFR 53-18, 18 FR 3171, June 3, 1953]

§ 17.05-5 Acceptance and disbursement of gifts.

- (a) The immediate receiving person shall give a proper receipt on the proper form used by the United States Coast Guard to acknowledge receipt of collections to the donor of a gift or bequest of money or for the proceeds from a sale of property received as a gift or devise.
- (b) Gifts or bequests of money, or the proceeds from sales of property received as gifts or devises shall be deposited in the Treasury of the United States under symbol and title “20X8533—United States Coast Guard, General Gift Fund.” Funds so deposited shall be subject to disbursement by or at the direction of the Commandant, United States Coast Guard, for the benefit or use of the designated school, hospital, library, museum, chapel, or other institution or organization under the jurisdiction of the United States Coast Guard subject to the terms of the particular gift, devise, or bequest.
- (c) 10 U.S.C. 2601(c) states that any gift, devise, or bequest of property, real or personal, accepted under these provisions shall be deemed to be a gift, devise, or bequest to or for the use of the United States for the purpose of Federal income, estate, and gift taxes.

[CGFR 53-18, 18 FR 3171, June 3, 1953, as amended by CGFR 61-36, 26 FR 9321, Oct. 3, 1961]

§ 17.05-10 Instructions for administration.

The Commandant, United States Coast Guard, will issue such detailed instructions as may be necessary for the administration of the “United States Coast Guard General Gift Fund” or for the acceptance, operation, or maintenance of property, real or personal, that may be accepted for the benefit of or in connection with any school, hospital, library, museum, chapel, or other institution or organization under the jurisdiction of the United States Coast Guard subject to the terms and conditions of any particular gift, devise, or bequest.

[CGFR 61-36, 26 FR 9321, Oct. 3, 1961]